

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 190 of 1996

Dula Meah and others

----Defendant-Petitioners

=Versus=

Iman Ali being dead his legal heirs 1(i) Jalal
Ahmed and others

-----Plaintiff-Opposite Parties

Mr. Abul Kalam Azad, Advocate

-----For the Petitioners

Ms. Afifa Begum, AAG, with

Mr. Surojit Bhattacharjee, Advocate

----For the Opposite Parties

Heard and Judgment on 07.05.2018

At the instance of the present-defendant-respondent-petitioners, Dula Meah and others, this Rule has been issued calling upon the opposite party No. 1 to show cause as to why the judgment and decree dated 30.08.1995 passed by the learned Subordinate Judge, Cox's Bazar in Other Appeal No. 72 of 1991 reversing the judgment and decree dated 10.07.1991 passed by the learned Assistant Judge, Moheshkhali, Cox's Bazar in Other Suit No.36 of 1988 should not be set aside.

The relevant facts for disposal of the Rule, *inter alia*, are that the present-opposite party No.1 (now dead) as the plaintiff filed the Other Suit No.36 of 1988 in the court of the learned Assistant Judge, Moheshkhali for declaration of title and for recovery of khas possession of the suit land described in the schedule of the plaint. The case in the plaint is that the suit land was a khas land under the Government of

Bangladesh wherein the plaintiff has been in possession for a long period of time. After development of the land, the plaintiff applied for settlement to the Government for settlement permanently. The present-opposite party No. 2 (the Government) settled the land in favour of the plaintiff by the Settlement Case No.85 of 1970-71 in favour of the plaintiff. On the basis of the above settlement, the Sub-Divisional Magistrate, Cox's Bazar after following all legal formalities opened a separate joth (holding) and also settlement khatian. After paying khajna up to 1387-1388 BS, the plaintiff was in possession by constructing cowshed, planting fruit trees upon the suit land. Due to perpetual lease by way of permanent settlement, BS Khatian No.15 was published finally in the name of the plaintiff. The defendant Nos.1-3 tried to dispossess him from the suit land and there were several litigations between the parties and the defendants forcefully taken over possession of the suit land on 15.07.1988 and constructed two houses on the land. Thus, the suit was filed.

The suit was contested by the defendant Nos.2-8 by filing a written statement denying the statements made in the plaint and also contending, *inter-alia*, that the suit was not maintainable as there was no cause of action and the suit was barred by limitation. The further contentions are that the total land measuring 10.84 acres was recorded in Khatian No.1 as khas land which was enjoyed by one Khirud Chandra Roy on behalf of the owner Sree Sree Karunamayee Gopinath Dev Bigraha. The predecessor of the defendant, Ramjan Ali got the suit land by settlement through a registered patta deed dated 30.12.1931. Ramjan

Ali was in possession by constructing a house and also by growing fruit trees. The said Ramjan Ali died leaving behind the present-defendant-petitioners as the legal heir of the suit land who have been living there with their families upon the total land measuring 10.84 acres, including, the present suit land. During M.R.R. operation, the land was recorded as khas land but the government could not acquire right, title, interest and possession of the suit land. The present-defendant-petitioners issued a notice to the Kerantali Tahsil Office for correcting the record of right published in M.R.R. Khatian which is still under consideration. The claimed of the plaintiffs are simply a paper transaction.

After hearing the contesting parties, the learned trial court dismissed the suit by his judgment and decree dated 10.07.1991. Being aggrieved the present-petitioners as the appellants preferred the Other Class Appeal No.72 of 1991 in the court of the learned District Judge, Cox's Bazar which was heard by the then learned Subordinate Judge, Ist court, Cox's Bazar who allowed the appeal by setting aside the judgment of the trial court by the impugned judgment and decree dated 30.08.1995. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the said impugned judgment passed by the learned appellate court and the present Rule has been issued thereupon.

Mr. Abul Kalam Azad, the learned Advocate appearing for the petitioners submits that the case of the defendants is that they have been in possession of the 10.84 shataks of land, including, the suit land by way of patta dated 30.12.31 and though the M.R.R. Khatian in respect

of their land which has wrongly been published in the name of the Government but the Government has never taken over possession and in view of the evidence of the plaintiff side also the defendants have been in possession. The Government has pleaded in the suit but the Government did not come and say that they settled the land to the plaintiff or handed over possession to the plaintiff, thus, the appellate court failed to decide the above aspects of the case which resulted in an error in the decision occasioning failure of justice, thus, the Rule should be made absolute.

The Rule has been opposed by the opposite party Nos.1 and 2.

Mrs. Afifa Begum, the learned Assistant Attorney General appearing for the opposite party No.2 (the Government) submits that the suit land measuring 1.60 acres in R.S. Dag No.2998 was settled by the Settlement Case No.85 of 1970-71 in favour of Iman Ali, the predecessor of the present-opposite party No.1, who died leaving behind the present substituted opposite party No.1 (I to VII). Accordingly, B.S. Dag No.3018 has been published in their names and the land development tax has been obtained by the Government until 1422 B.S. which has been confirmed by the Assistant Commissioner (Land), Moheshkhali, Cox's Bazar by a letter dated 08.04.2018 as per enquiry of this Court the learned Assistant Attorney General informer during the hearing of this Rule, as such, the present-opposite party No.2 (the Government) supports the case filed by the present-plaintiff-opposite party No.1.

Mr. Surojit Bhattacharjee, the learned Advocate appearing for the opposite party No.1 by filing a Counter-affidavit, contending, *inter-alia*, that the plaintiff witnesses as PWs clearly proved the plaintiff's case of possession and dispossession. The learned trial court below failed to consider that the plaintiff could successfully prove their case acquiring valid title, possession, dispossession and entitled to get a decree. A Licensee has no right or interest in the property except the right to use the same on behalf of the real owner but a lessee has a right in the property and such right is heritable also, thus, the Rule should be discharged.

The learned Advocate also submits that Section 143 (c) of the State Acquisition & Tenancy Act, 1950 a suit land was recorded in the name of the opposite party No.1 on the basis of a perpetual lease through the Settlement Case No.85 of 1970-1971 (Exhibit-'Ka') accordingly, record of right in B.S. Khatian was published in the name of the opposite party No.1 (Exhibit-Chha). The learned trial court misread the evidence adduced and produced by the parties and also the documents thereof came to a wrongful conclusion to dismiss the suit, however, the learned appellate court after lawful consideration of the fact and also the relevant law came to a lawful conclusion, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the Annexures therein, in particular, the impugned judgment and also perusing the materials in the lower courts' records, it

appears to me that the present-opposite party No.1 (now deceased) and substituted (by his legal heirs) by a suit claiming title and khas possession as he was dispossessed by the present-defendant-petitioners. Whereas, the present-defendant-petitioners filed this revisional application on the basis of their entitlement upon the suit land pursuant to registered patta dated 30.12.1931 from Khirod Chandra Roy and they have also claimed their entitlement on the basis of the above patta.

In view of the above conflicting factual and legal aspects in the present case, this Court has to take a decision as to whether the Settlement Case No.85 of 1970-1971 Exhibit-‘Ka’ has given entitlement upon the present-plaintiff-opposite party No.1 by the present-opposite party No.2 (the Government) and whether the plaintiff could prove his case in the courts below. In this regard, I have carefully examined the documents adduced and produced by the parties in the courts below, in particular, Exhibits- ‘Ka and ‘Kha’. I have perused the settlement documents itself which contains paragraph No.12 in the following terms which reads as follows:-

12. If you fulfill the conditions of this lease, the lease hereby granted shall notwithstanding anything herein to the contrary become automatically a permanent raiyati settlement on the expiry of a period of five years from the date of this lease or after the payment of the last installment of the premium, whichever is later, but if you fail to observe any or of the conditions of this lease, then it shall be competent for

the Deputy Commissioner at any time to reenter upon the demised land or any part thereof in the name of the whole and thereupon this lease shall absolutely determine in respect of the entire land without any refund but without prejudice to any right of suit by Government in respect of any antecedent breach of any your concernments herein contained.

In the above matter the admitted position between the parties are that the suit land has been recorded in S.A. in the name of Government as khas land but the present-petitioners never came before any court for claiming their entitlement upon the suit land on the basis of the alleged patta in the year of 1931 or even to correct the record of right published in S.A and B.S. The plaintiff came before the court of law claiming his entitlement and also for recovery of khas possession after being dispossessed from the suit land forcefully and unlawfully by the present-petitioners.

The settled principle of law is that the plaintiff bears burden to prove his own case at the standard of balance of probability. It means that the plaintiff must prove with the document and evidence that he has a better probable case for entitlement upon the suit land.

After examining the documents in this case and the witnesses statements by way of deposition in court, I am satisfied that the plaintiff-opposite party No.1 (now deceased and substituted) could prove his own case as to the entitlement upon the suit land by way of Settlement Case No.85 of 1970-1971 from the present-opposite party No.2 (the

Government). Accordingly, the record of right in B.S. Khatian has been published in his name or the names of his successors by way of inheritance.

This Court made an enquiry with the learned Advocates appearing for the opposite party Nos. 1 and 2 (the Government) as to the record of right in favour of a lessee under the Government for a periodical lease. Both the learned Assistant Attorney General and the learned Advocate Mr. Surojit Bhattacharjee submitted that under Section 143 (c) of the State Acquisition & Tenancy Act, 1950, the record of right can be maintained on the ground of a new settlement of rent or of a new holding for purchase by the Government. On the basis of the legal provision, publication of the record of right in B.S. Khatian in favour of the present-opposite party No.1 or his legal heirs is hereby considered as lawful record of right.

Now I am inclined to examine the judgment and decree passed by the learned courts below. The learned trial court failed to consider the relevant evidence and law thereby came to a wrongful conclusion on the basis of the following finding:-

যে-হতু ৩নং এবং ৪নং বিচার্য বিষয়গুলি বাদীর প্রতিকূলে গৃহীত হইল এবং যে-হতু এই বিচার্য বিষয়গুলির সিদ্ধান্তের উপর অএ বিচার্য বিষয়গুলি নির্ভরশীল, সেহেতু বাদী গৃহাদি উ-চ্ছদ ও দখল পাই-ত পা-র বলিয়া আমি ম-ন করি না। বাদীর মামলা একই কার-ণ অএ আকা-র চলি-ত পা-র না বা বাদীর প্রার্থিত ম-ত বা অন্য কোন প্রতিকার পাই-ত পা-র না বলিয়া আমি ম-ন করি।

On the other hand, the learned appellate court after considering the evidence came to a lawful conclusion to allow the appeal preferred by the present-opposite arty No.1 on the basis of the following finding:-

বিজ্ঞ নিম্ন আদালতের তর্কিত রায় পর্যালোচনা করিলে দেখা যায় বিবাদীগণ নালিশী জমি হই-ত ব-ন্দাবস্ত পাওয়ার জন্য আ-বদন করিয়া-ছ। ইহাতে স্পষ্টতঃই প্রমানিত হয় নালিশী জমি-ত বিবাদীগ-ণর কথিত জমিদারী পাট্টা মূ-ল কোন স্বত্ব স্বার্থ অর্জিত হয় নাই। জোরপূর্বক আপীলকারী বাদী-ক বেদখল করার জন্য বিভিন্ন ভা-ব অপ-চণ্ডায়রত আ-ছ। বিবাদীপক্ষ বাদীর দাবীকৃত নালিশী জমি বা-দ অন্য জমি-ত দখলকার আ-ছ কিনা তাহা অএ মামলায় বিচার্য বিষয় ন-হ। নালিশী জমি-ত বিবাদীপক্ষ বিরুদ্ধে দখলজগিত স্ব-ত্ব স্বত্ববান আ-ছ বলিয়া দাবী করিয়া-ছ। নালিশী জমি যেহেতু সরকারের খাস জমি ছিল। বিবাদী পক্ষের বিরুদ্ধে দখলের দাবীর আইনগত কোন ভিত্তি নাই। বিরুদ্ধ দখল আদৌ প্রমানিত হয় নাই। বিজ্ঞ নিম্ন আদালত বাদী আপীলকারীর উপস্থাপিত দালিলিক এবং মৌখিক সাক্ষ্য সঠিক ভা-ব মূল্যায়ন করি-ত সক্ষম হন নাই। আপীলকারী বাদীপক্ষ নিম্ন আদাল-ত তাহার মামলা প্রমান করি-ত সক্ষম হইয়া-ছ। নালিশী ২০ শতক জমি-ত রেসপন-ডন্ট-বিবাদী পক্ষ জোরপূর্বক যে ২টি হাংগামা গৃহ উ-ণালন করিয়া-ছ তাহা অপসারণ এবং উ-চ্ছদ-যোগ্য।

In view of the above discussions and after perusal of the impugned judgment and decree passed by the learned courts below, I am of the opinion that the learned trial court committed an error of law by dismissing the suit filed by the present-opposite party No.1 as the plaintiff because he failed to consider the relevant documents and the laws, whereas, the learned appellate court properly considered and applied his judicial mind by taking into a judicial notice of the documents and the depositions of the witnesses, thereby, came to a lawful conclusion to allow the appeal by setting aside the judgment and decree passed by the learned trial court by the impugned judgment and decree. The learned appellate committed no error of law by passing the impugned judgment. I am, therefore, not inclined to interfere into the impugned judgment and decree passed by the appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The petitioners are hereby directed to handover possession of the suit land to the opposite parties immediately.

The adinterim order of stay upon the operation of the impugned judgment and decree in the Other Class Appeal No.72 of 1991 is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the concerned court and also directed to send down the lower courts' record immediately.